

FIRST ENDORSEMENT

Chief Prosecutor Andre Applewhite, Civilian Complaint Review Board, to Deputy Commissioner Tarek A. Rahman, Department Advocate's Office, June 16, 2025. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2022-27099 against Lieutenant Roberto Dominguez, Tax Registry No. 938384. The case was conferenced on February 4, 2025, before Assistant Deputy Commissioner of Trials Anne Stone who approved the negotiated penalty of a Command Discipline Schedule B and a forfeiture of TEN (10) vacation days, after Lieutenant Dominguez accepted the findings and substantiation of the allegations contained in the Charges and Specifications dated October 11, 2022. Charges and Specifications are dismissed for plea purposes.

Andre D. Applewhite

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Chief Prosecutor

New York City Civilian Complaint Review Board

**DISPOSITION OF CHARGES**

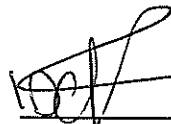
PD 468-142 (Rev. 8-89)-2

CASE NO.
C-031859BOOK & PAGE NO.
Page 1 of 1

PERSONNEL ORDER NO.

RANK/TITLE LT	SURNAME, DOMINGUEZ	FIRST ROBERTO	M.I.	COMMAND 136
SHIELD NO. 00000	TAX REGISTRY NO. 938384	SOCIAL SECURITY NO.	DATE APPOINTED 07/11/2005	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Lieutenant Roberto Dominguez, on or about April 24, 2021, at approximately 2245, while assigned to 040 PCT and on duty, in the vicinity of Brooklyn Bridge, New York County, wrongfully used force, in that he used pepper spray against individuals without police necessity.	DISMISSED	B - COMMAND DISCIPLINE It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 10.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.



FIRST DEPUTY COMMISSIONER

08/07/25

DATE

POLICE COMMISSIONER'S APPROVAL☒ Approved☐ Disapproved☐ Other Action (Describe)



POLICE COMMISSIONER

10/11/25

DATE

THIRD ENDORSEMENT

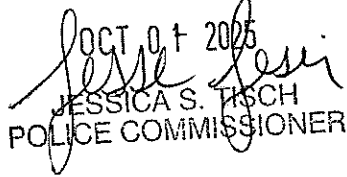
First Deputy Commissioner to Police Commissioner, August 6, 2025. Contents noted. I reviewed the negotiated plea in PODS Case No. C-031859 (CCRB Case No. 202102531) against Lieutenant Roberto Dominguez, Tax No. 938384, with the recommendation that the Charges and Specifications against Lieutenant Dominguez be dismissed and that Lieutenant Dominguez receive a Schedule "B" Command Discipline and forfeit ten (10) vacation days. Assistant Deputy Commissioner, Trials Anne E. Stone reviewed this case and made a favorable recommendation pertaining to the proposed settlement; I concur. **RECOMMEND APPROVAL.**



FIRST DEPUTY COMMISSIONER

TIK/jpc

APPROVED



OCT 01 2025
JESSICA S. TISCH
POLICE COMMISSIONER